

I. Request

The Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPD) to issue an opinion on the Draft Decree-Law regarding the information system to support the management and processing of procedures in the public systems of family and labor mediation, the procedures and processes in the peace courts, and in the consumer conflict arbitration centers that are part of the consumer arbitration network, designated as "Platform RAL+."

The CNPD issues an opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of no. 1 of article 57, paragraph b) of no. 3 of article 58, and no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, paragraph 2 of article 4, and paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order (hereinafter LERGPD).

II. Analysis

The Draft Decree-Law creates a unique and common IT platform that will serve the management and operation of the different means of alternative dispute resolution managed or supported by the Ministry of Justice: public systems of family and labor mediation, peace courts, and consumer conflict arbitration centers that are part of the network (in the Preamble).

The Platform, named RAL+, will allow the performance of a set of acts in a dematerialized manner, such as requests for information, initiating different procedures or processes, namely family mediation and labor mediation procedures, the procedures and processes in peace courts and consumer conflict arbitration centers, as well as consulting the processes.

It is also mentioned in the Preamble of the Draft Decree-Law that the RAL+ Platform will allow for the simplification and digitization of processes and procedures, the introduction of improvements and automation, and the development of new interoperability that allows for the dematerialization of communications with the different stakeholders.

The legal system of alternative dispute resolution is based, namely, on Law no. 29/2013, of April 19, which establishes the general principles applicable to mediation carried out in Portugal, as well as the legal regimes of civil and commercial mediation, mediators, and public mediation, on Law no. 144/2015, of September 8, which establishes the legal framework for extrajudicial mechanisms for the resolution of consumer disputes, and Decree-Law no. 105/2020, of December 23, which creates the Public Support System for Conciliation in Over-Indebtedness.

The development of the RAL+ Platform is the responsibility of the Ministry of Justice, which, through the Financial Management and Justice Equipment Institute, IP, ensures the supporting infrastructure for the Platform, namely application hosting and databases, being responsible for ensuring the availability and resilience of the infrastructure (article 2, no. 1, 3, and 4 of the Draft Decree-Law).

In turn, the management of the Platform is the responsibility of the Directorate-General for Justice Policy (article 2, no. 2 of the Draft Decree-Law).

Article 3, no. 1 of the Draft Decree-Law states that: [the] practice of acts and the consultation of procedures and processes, (paragraph a)); [the] communication with other information systems in the context of the processing of procedures and processes, (paragraph b); [the] collection and processing of statistical data and management indicators, (paragraph c), having access to the same: parties; representatives; other legal representatives of the parties; peace judges, workers, and mediators performing functions in peace courts; mediators and workers performing functions in public family and labor mediation systems; arbitrators, workers, directors, and mediators performing functions in

consumer conflict arbitration centers that are part of the consumer arbitration network; civil registry conservators; Presidents of child and youth protection committees; Supervisory and Regulatory Entities; Directorate-General for Justice Policy, as the managing entity of the Platform (article 3, no. 2 of the Draft Decree-Law).

Article 7 of the Draft Decree-Law enshrines a principle declaration guaranteeing the integrity, authenticity, and inviolability of the procedures and processes that are processed therein, as well as compliance with applicable confidentiality regimes, the regime for the protection and processing of personal data, and the norms of security and access to information.

However, no security measures are identified that safeguard the fulfillment of these objectives and guarantees.

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Access to the reserved area of the RAL+ Platform depends on user authentication, a procedure that is not provided for and is subject to regulation by decree of the government member responsible for the area of justice (Article 7, paragraph 2 of the Draft Decree-Law).

Since it is unknown what personal data will be collected for authentication in the reserved area of the Platform, the CNPD cannot comment on its adequacy, proportionality, and minimization, in respect of the principle enshrined in subparagraph c) of paragraph 1 of Article 5 of the GDPR.

Article 8 of the Draft Decree-Law, which provides for retention periods, sets the general retention period for data from procedures and processes at 20 years, counted from administrative filing (paragraph 1).

This period does not respect the principle of data retention limitation, enshrined in subparagraph e) of paragraph 1 of Article 5 of the GDPR.

Paragraph 2, in turn, states that, for the purposes of public interest archiving, the final decision must be retained indefinitely in peace courts and in consumer conflict arbitration centers that are part of the consumer arbitration network, as well as the agreements and any homologation decisions that have occurred, with registration on the platform, in public family and labor mediation systems, in peace courts, and in consumer conflict arbitration centers that are part of the consumer arbitration network. The Draft legal diploma does not specify or exemplify what should be considered public interest for the purposes of retaining decisions and agreements without a time limit, noting that such documents will certainly contain personal data, such as the names of the parties, tax identification numbers, addresses, and there is no mention of their anonymization.

The processing of data for public interest archiving purposes must comply with the requirements and guarantees provided for in Article 89 of the GDPR.

The Draft diploma is silent regarding the entity responsible for data processing.

It is noted that the request for an opinion on the Draft Decree-Law under analysis was not accompanied by an impact study on the protection of personal data, as required by paragraph 4 of Article 18 of Law No. 43/2004, of August 18.

Such omission hinders the requested evaluation and the assessment to be made regarding the risks in the processing of personal data within the scope of the RAL+ Platform.